

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Public Health Act, 1875	38 & 39 Vict. c. 55.
Public Health Acts Amendment Act, 1890	53 & 54 Vict. c. 59.
Private Street Works Act, 1892	55 & 56 Vict. c. 57.
Building Societies Act, 1894	57 & 58 Vict. c. 47.
Local Government Act, 1929	19 & 20 Geo. 5. c. 17.
Public Health Act, 1936	26 Geo. 5. & 1 Edw. 8. c. 49.
Distribution of Industry Act, 1945	8 & 9 Geo. 6. c. 36.
New Towns Act, 1946	9 & 10 Geo. 6. c. 68.
Transport Act, 1947	10 & 11 Geo. 6. c. 49.
Town and Country Planning Act, 1947	10 & 11 Geo. 6. c. 51.
Local Government Act, 1948	11 & 12 Geo. 6. c. 26.

CHAPTER 41

An Act to extend the power of the Minister of Fuel and Power to make advances to the National Coal Board for capital purposes and to extend the temporary borrowing powers of that Board ; and to adjust as between the Cannock Chase and South Staffordshire Valuation Districts the amount of compensation apportioned by the Central Valuation Board to those districts under section twelve of the Coal Industry Nationalisation Act, 1946. [3rd July 1951.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Extension of power to make advances to National Coal Board, and of temporary borrowing powers of Board.

9 & 10 Geo. 6.
c. 59.

1.—(1) For section twenty-six of the Coal Industry Nationalisation Act, 1946 (which empowers the Minister of Fuel and Power to make advances to the National Coal Board for capital purposes of sums not exceeding, in the period of five years from the commencement of that Act, one hundred and fifty million pounds, or, in any subsequent period, an amount to be determined by Parliament) there shall be substituted the following section:—

“ 26.—(1) For the purpose of enabling the Board to defray expenditure properly chargeable to capital account, including the provision of working capital, the Minister may make advances to the Board:

Provided that—

- (a) the aggregate amount of the principal outstanding in respect of advances under this section shall not at any time exceed three hundred million pounds;
- (b) the aggregate amount of the advances under this section in any financial year shall not exceed forty million pounds or such greater amount as may be specified for that year in an order made by the Minister.

(2) The power of the Minister to make orders under the preceding subsection shall be exercisable by statutory instrument, and no such order shall be made unless a draft thereof has been laid before the Commons House of Parliament and has been approved by resolution of that House.

Any such order may be varied by a subsequent order made in like manner and subject to the like conditions."

(2) In the first proviso to the section so substituted and in the second proviso thereto, so far as it relates to advances made during the financial year current at the commencement of this Act, the reference to advances under that section includes a reference to advances before the commencement of this Act under the said section twenty-six as originally enacted.

(3) Section twenty-eight of the Coal Industry Nationalisation Act, 1946 (which relates to the payment of interest on, and the repayment of, advances under the said section twenty-six) and section thirty-four of the said Act (which provides for the issue out of the Consolidated Fund of sums required for such advances) shall apply to advances made under the section hereby substituted for the said section twenty-six.

(4) In section twenty-seven of the Coal Industry Nationalisation Act, 1946 (which confers temporary borrowing powers on the National Coal Board, but limits the amount outstanding in respect of sums so borrowed to ten million pounds), for the words "ten million pounds" there shall be substituted the words "twenty million pounds".

2. The amounts apportioned by the Central Valuation Board under section twelve of the Coal Industry Nationalisation Act, 1946 (which relates to the apportionment between valuation districts of the total compensation for the coal industry value of interests transferred under that Act) to the Cannock Chase and the South Staffordshire Valuation Districts shall respectively be reduced and increased by one hundred and ten thousand pounds and, accordingly, the said Act shall have effect as if the respective amounts so apportioned were—

Adjustment
of compen-
sation.

- (a) to the Cannock Chase district, five million one hundred and forty-two thousand pounds (£5,142,000),

(b) to the South Staffordshire district, eight hundred and fifty-three thousand pounds (£853,000),

and the Central Valuation Board Apportionment Certificate issued before the passing of this Act shall be of no effect as respects those districts.

Short title and
citation.

3. This Act may be cited as the Coal Industry Act, 1951, and the Coal Industry Acts, 1946 and 1949, and this Act may be cited together as the Coal Industry Acts, 1946 to 1951.

CHAPTER 42

An Act to make provision for the appointment and functions of a Minister of Materials.

[3rd July 1951.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Appointment
and functions
of Minister
of Materials.

1.—(1) It shall be lawful for His Majesty to appoint a Minister of Materials (in this Act referred to as "the Minister") who (without prejudice to the exercise by him of any other functions conferred on him) shall be charged with the exercise of such functions relating to raw and other materials as may be conferred on him.

(2) Without prejudice to any other power to confer functions on the Minister, the enactments specified in the Schedule to this Act shall apply to the Minister as they apply to the Board of Trade or the Minister of Supply.

(3) References in the foregoing provisions of this section to the conferring of functions shall be construed as references to—

(a) the conferring of functions by Order in Council under the Ministers of the Crown (Transfer of Functions) Act, 1946,

(b) the conferring of functions by or under any other enactment, and

(c) the assigning (otherwise than in pursuance of an enactment) of functions such as are exercisable by a Minister of the Crown without powers conferred or authority given by or under an enactment.

9 & 10 Geo. 6.
c. 31.